

general employer and the possibility that it was in a dual employment relationship with Flowers with respect to Whitehead when the accident occurred because it did not turn over "total" control over Whitehead's employment to Flowers. (*Marsh, supra*, 26 Cal.3d at 495-496.)

Plaintiff has also presented evidence that raises triable issues of fact regarding a possible dual employment. Among other evidence, Plaintiff's responses to UMFs include evidence of historical payroll summaries of "ABM Industries" for Whitehead as an employee (Miller Decl. Exhs. A, B), W-2 statements for Whitehead showing his employer as "ABM General Services, Inc." (Miller Decl. Exh. C), and a Notice of Corrective Action and a Performance Review for Whitehead, both bearing ABM's name, supported by evidence from the DiDomenico Deposition that both the Flowers supervisor on behalf of Flowers and the ABM on-site recruiter for ABM General separately addressed the violations of policy and corrective action with Whitehead (Miller Decl. Exhs. F, G, and I [DiDomenico DT 57:15-60:4]), and the fact that the ABM on-site recruiter collected Whitehead's time cards (Miller Decl. Exh. I [DiDomenico DT 49:10-23]). (*See also* Pl. AFs 1-3, 7-11.)

On the record before the Court, ABM has not shown that there are no material issues of fact in dispute and that ABM General is entitled to summary judgment in its favor as a matter of law.

Defendant's Evidentiary Objections to Miller Declaration

Obj. No. 1 – **Sustained.**

Conclusion and Ruling

Moving Party ABM General did not meet its initial burden on the motion for summary judgment by failing to submit facts and evidence demonstrating that it relinquished total control over Whitehead to Flowers while Whitehead was assigned to Flowers. Even if ABM General met its initial burden, Plaintiff has raised triable issues regarding whether Whitehead was a special employee of Flowers subject to the total and exclusive control of Flowers during his work for Flowers, including at the time of the accident, or whether Whitehead was subject to a dual employment relationship with Flowers and ABM General. The ABM General motion for summary judgment is therefore **denied**.

3. 9:00 AM CASE NUMBER: C23-02738
CASE NAME: WILLIAM WALKER VS. GEORGE WHITEHEAD
CONT'D FROM 6/27/2026 PER TR
FILED BY: ABM INDUSTRIES, INC
TENTATIVE RULING:

Before the Court is a motion for summary judgment by defendant ABM Industries, Inc. ("ABM Industries") For the reasons set forth, the motion for summary judgment is **granted**.

Background

Plaintiff William Walker alleges he was injured in a motor vehicle accident on December 16, 2021 when his vehicle was struck by a box truck being driven by George Whitehead. (Compl. ¶¶ 12, 14.) The complaint names, among other defendants, Flowers Baking Company of Modesto, LLC, erroneously named in the complaint as Flowers Foods, Inc. ("Flowers"). Defendants ABM Industries,

Inc. and ABM General Services, Inc. were added as Doe defendants in April 2024. (Voss Decl. Exhs. B, C.) ABM Industries moves for summary judgment. Plaintiff opposes the motion.

Legal Standards Governing Defendant's Motion for Summary Judgment

Under Code of Civil Procedure § 437c(c), a motion for summary judgment "shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Code Civ. Proc. § 437c(c).) The issues to be considered on a motion for summary judgment are defined by the pleadings. (*Doe v. Good Samaritan Hospital* (2018) 23 Cal.App.5th 653, 661; *Teselle v. McLoughlin* (2009) 173 Cal.App.4th 156, 161.)

When a defendant moves for summary judgment, the defendant bears the burden of producing evidence that plaintiff cannot prove one or more essential elements of plaintiff's claim or that there is a complete defense to the claim. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850; Code Civ. Proc. § 437c(p)(2).) Once the defendant has met this initial burden, the burden shifts to the plaintiff to produce admissible evidence showing that a triable issue exists. (*Advent, Inc. v. National Union Fire Ins. Co. of Pittsburgh, PA* (2016) 6 Cal.App.5th 443, 453; Code Civ. Proc. § 437c(p)(2).)

The Court may not weigh the evidence but must view it "in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party. [Citations omitted.]" (*Weiss v. People ex rel. Dept. of Transportation* (2020) 9 Cal.5th 840, 864.) Declarations and other evidence offered in support of a motion for summary judgment are strictly construed, while declarations and evidence offered in opposition to the motion are liberally construed. (*D'Amico v. Bd. of Medical Examiners* (1974) 11 Cal.3d 1, 20; *Johnson v. American Standard* (2008) 43 Cal.4th 56, 64.)

" '[S]ummary judgment cannot be granted when the facts are susceptible to more than one reasonable inference ' " (*Husman v. Toyota Motor Credit Corp.* (2017) 12 Cal.App.5th 1168, 1180; *Cohen v. Five Brooks Stable* (2008) 159 Cal.App.4th 1476, 1497.) "All doubts as to the propriety of granting the motion—i.e., whether there is any triable issue of material fact—are to be resolved in favor of the party opposing the motion." (*Cohen, supra*, 159 Cal.App.4th at 1483.)

Note on the Pleadings

The hearing on the motion was originally scheduled for June 26, 2026. The Court issued a tentative ruling addressing various deficiencies in Plaintiff's opposition and directed Plaintiff to file an amended response to the moving party's Separate Statement of Undisputed Material Facts in conformity with the applicable California Rules of Court. Plaintiff timely filed an Amended Response to the Separate Statement and Amended Compendium of Exhibits, and consistent with that order, ABM Industries filed a supplemental reply which the Court will address below.

Analysis

Plaintiff's complaint alleges a single cause of action for negligence based on a motor vehicle accident. The general elements of negligence are not in dispute: the essential elements are duty, breach of duty and causation. (*Ladd v. County of San Mateo* (1996) 12 Cal.4th 913, 917.) ABM Industries contends that the undisputed material facts show it owed no duty to Plaintiff, and that Plaintiff does not have, and cannot obtain, evidence to demonstrate the existence of a duty owed to Plaintiff by ABM Industries because defendant Whitehead who was driving the vehicle was not an employee of

the company.

A. Undisputed Material Facts

In support of its motion, Defendant ABM Industries filed a Separate Statement ("SS") of Undisputed Material Facts ("UMFs") with 15 UMFs. Plaintiff filed an Amended Response to the SS which also includes Plaintiff's Additional Material Facts ("AFs") numbered 1 through 8.

There is no dispute regarding UMFs 1-5. (Pl. Resp. to UMFs 1-5.) In its supplemental reply, ABM Industries objects to Plaintiff's amended response to UMFs 4 and 5 as not in conformity with the California Rules of Court and the Court's June 26, 2026 order, as the responses only generally cite to an Antioch Police Report without reference to its location in Plaintiff's exhibits. Even if noncompliant, the defect is immaterial as the UMFs are undisputed. Because Plaintiff states that UMFs 4 and 5 are undisputed, the Court has no need to consider the evidence cited by Plaintiff, only the facts stated in the UMFs.

There is no genuine dispute that Plaintiff's complaint includes a single cause of action for negligence and that ABM Industries was added as defendant Doe 1 by doe amendment filed April 23, 2024. (UMFs 1, 2.) There is no dispute that Plaintiff was allegedly involved in a motor vehicle accident on December 16 2021 when his vehicle was struck by an Enterprise box truck driven by defendant Whitehead. (UMFs 4, 5; Pl. Resp. to UMFs 4, 5.) There is no dispute that ABM Industries did not own, control, lease, or operate any vehicle involved in the December 16, 2021 accident. (UMFs 9, 11; Pl. Resp. to UMFs 9, 11.)

There is also no genuine dispute that Flowers had entrusted the vehicle Whitehead was driving to Whitehead, that Flowers gave Whitehead permission to drive the box truck, that Whitehead was not involved in the rental of the vehicle, and that Whitehead was responsible for maintenance of the truck. (UMFs 10, 14; Pl. Resp. to UMFs 10, 14.) It is also undisputed that at the time of the accident, Whitehead was working for Flowers delivering bread, though Plaintiff disputes that this undisputed fact precludes legal liability by ABM Industries under the dual employment doctrine. (UMF 13; Pl. Resp. to UMF 13.) There is no dispute that while Whitehead was working for Flowers, Flowers provided him with a handheld device to use in performing his bread delivery route, but again Plaintiff contends this undisputed fact does not preclude simultaneous employment of Whitehead also by ABM Industries. (UMF 15; Pl. Resp. to UMF 15.)

B. Facts Plaintiff Asserts Are Disputed and Plaintiff's Additional Facts

Plaintiff disputes UMFs 6-8, and 12. The evidence Plaintiff relies on to dispute these facts is largely the same for each of the four UMFs.

Plaintiff disputes that Whitehead was never an employee of ABM Industries or acting within the course and scope of his employment by ABM Industries when the accident occurred. (UMF 6; Pl. Resp. to UMF 6 [citing historical payroll records for Whitehead with "ABM Industries" identified in the header, W-2s which identify ABM General, not ABM Industries, as Whitehead's employer, a job posting which includes at the end a statement "WOTC Package created for ABM Industries, Inc.," and excerpts of the ABM PMK deposition of DiDomenico, discussed further below, as its evidence Whitehead was an employee of ABM Industries or was acting in the course of his employment for ABM Industries when the accident happened].) Plaintiff asserts based on this evidence that ABM

Industries "withheld and remitted" payroll taxes for Whitehead and allegedly "collected WOTC [Work Opportunity Tax Credit] tax credits for his placement." (Pl. Resp. to UMF 6.) He contends DiDomenico's deposition testimony contradicts the facts stated in UMF 6.

Plaintiff lists UMF 7 as disputed, but Plaintiff's response and the supporting evidence do not dispute the narrow fact stated. The fact stated in UMF 7 is that ABM Industries did not enter into any agreement with Flowers for the loan of employees to deliver the Flowers bread and baked goods. (UMF 7; Pl. Resp. to UMF 7.) That ABM Industries may have had shared payroll services with ABM General or that a WOTC package was created for ABM Industries related to Whitehead's position does not negate the fact stated. (Pl. Resp. to UMF 7.)

Similarly, Plaintiff lists UMF 8 as disputed, but Plaintiff's response and the supporting evidence do not dispute the narrow fact stated, specifically that ABM Industries was not a party to the 2013 Lease Agreement between Flowers and ABM Janitorial. That ABM Industries "independently assumed functions of an employer with respect to Whitehead" by processing payroll for ABM General or that ABM Industries performs shared payroll services for ABM General does not mean it was a party to the 2013 Lease Agreement. (Pl. Resp. to UMF 8.)

Plaintiff cites 8 AFs which he contends raise triable issues. AFs 1 and 2 address that ABM Industries maintained the historical employee payroll register for Whitehead's employment, that ABM Industries operates the payroll system that paid Whitehead's wages, and is the "shared services department" of the ABM companies. (AFs 1, 2.) The cited portions of the deposition transcript of the ABM PMK do not support the proposition stated in AF 3 that ABM's PMK "confirmed" that ABM General was Plaintiff's employer in 2021 and 2022 for federal tax purposes or that ABM Industries' payroll department withheld taxes and other withholdings for Whitehead or prepared his W-2s. Nevertheless, liberally construing Plaintiff's evidence, the cited evidence does support that ABM Industries provided a "shared services" department that provided payroll services to ABM General. (AF 3 [citing Miller Decl. Exh. I, DiDomenico DT 15:5-16:11].) The W-2s (Miller Decl. Exh. C) only show ABM General as Whitehead's employer, without any reference to ABM Industries.

Plaintiff does not genuinely dispute the portion of UMF 12 stating that Plaintiff does not have evidence that ABM Industries caused the December 16, 2021 accident, but Plaintiff disputes the second part of the UMF regarding whether Plaintiff has evidence that ABM Industries is "responsible" for Plaintiff's injuries from the accident. (Pl. Resp. to UMF 12.) Plaintiff contends ABM Industries' role in operating the payroll system by which Whitehead's payroll taxes were withheld and paid, and in allegedly "obtaining" WOTC tax credits for Whitehead's placement show that ABM Industries is legally responsible for the accident that caused Plaintiff's injuries under respondeat superior as Whitehead's employer. (Pl. Resp. to UMF 12.)

Plaintiff presents evidence that the job posting for Whitehead's position as a driver with Flowers includes at the end a statement "WOTC Package created for ABM Industries, Inc." (AF 4 [Miller Decl. Exh. D].) The ABM PMK deposition testimony submitted by Plaintiff, however, includes DiDomenico's testimony explaining that ABM Industries provided payroll processing "shared services" for ABM General. The fact that a WOTC package was "created for ABM Industries" is consistent with its role in managing payroll services for ABM General, and the W-2s which show ABM General as Whitehead's employer undermine the implication Plaintiff attempts to draw that ABM Industries was Whitehead's

employer and that ABM Industries, rather than ABM General obtained and used any WOTC tax credits associated with Whitehead's position.

The ABM PMK deposition transcript excerpt provided does not support that ABM Industries collected or used any WOTC tax credit associated with Whitehead's position. At the bottom of page 17 of the transcript, counsel poses the question: "Does ABM Industries, Inc. receive federal WOTC tax credits for employees placed at client sites like Flower Foods?" but the answer to the question is omitted, an answer that presumably appears on page 18 which is not included in the evidence package. The included excerpts of the transcript support that the job posting was for Whitehead's job, but not the entity that actually used or benefited from the tax credit.

Plaintiff presents evidence that ABM's PMK described ABM Industries as the "corporate entity" and ABM General as a "division," the "division" of ABM Industries that DiDomenico works for. (AF 5 [citing Miller Decl. Exh. I, DiDomenico DT 11:25-14:25].) DiDomenico also testified that he does not know whether the "folks" he reports to are employed by ABM General or ABM Industries. (Miller Decl. Exh. I [DiDomenico DT 12:12-20].) DiDomenico could not state whether ABM Industries and ABM General share common officers, directors, or managing agents (Miller Decl. Exh. I [DiDomenico DT 13:25-14:6]), but he testified that ABM Industries provides "corporate support," such that ABM Industries and ABM General share resources such as the human resources, payroll, and risk departments and might share some administrative infrastructure. (Miller Decl. Exh. I [DiDomenico DT 14:16-25].) The Court notes that most of the cited excerpts referenced in support of AF 5 are not highlighted despite the Court's June 26, 2026 Order, but the Court has considered them. (Cal. R. Ct. Rule (Cal. R. Ct., Rule 3.1116(c).) Though DiDomenico testified he was employed by ABM General, he was designed as the PMK for both ABM General and ABM Industries. (AF 6.)

The "punch report" time record report attached as Exhibit E to the Miller Declaration shows Whitehead was clocked in for work at the time of the accident. (*See also* Miller Decl. Exh. J [police report listing times of incident and police response].) There does not seem to be any dispute that Whitehead was working for Flowers delivering bread when the accident occurred. (UMFs 4, 5, 13.)

In AF 8, Plaintiff asserts that ABM Industries' payroll records reflect employer contributions for various "employer side" tax obligations during Whitehead's employment, citing historical payroll registers which bear the title "ABM Industries" and refer to "Employees Sorted by Alpha Name" (Miller Decl. Exhs. A, B) and Plaintiff's W-2s which identify ABM General as Whitehead's employer (Miller Decl. Exh. C). Plaintiff's AFs are in part also supported by ABM's PMK deposition discussed above, in which DiDomenico testified that ABM Industries provided some shared administrative services to ABM General, apparently meaning internal administrative services such as operating the payroll system for ABM General.

C. Summary of Applicable Law Regarding Special Employment Doctrine

The foundational principle for imposition of liability on an employer for the negligent acts or omissions of an employee is respondeat superior, which makes an employer vicariously liable for the employee's torts. (*State ex rel. Dept. of California Highway Patrol v. Superior Court* (2015) 60 Cal. 4th 1002, 1015.) " '[T]he principal justification for the application of the doctrine of respondeat superior in any case is the fact that the employer may spread the risk through insurance and carry the cost thereof as part of the costs of doing business.' [Citations omitted.]" (*Id.* [citing in part *Hinman v.*

Westinghouse Electric Co. (1970) 2 Cal.3d 956, a case cited by ABM Industries.) In *Bussard v. Minimed, Inc.* (2003) 105 Cal.App.4th 798, cited by ABM Industries, the Court elaborated on the respondeat superior doctrine: "Under the doctrine of respondeat superior, an employer is ordinarily liable for the injuries its employees cause others in the course of their work. Respondeat superior imposes liability whether or not the employer was itself negligent, and whether or not the employer had control of the employee. The doctrine's animating principle is that a business should absorb the costs its undertakings impose on others." (*Id.* at 803 [addressing doctrine in the context of the "going and coming rule" and exceptions in a fairly inapposite factual context of whether employee's job was a contributing cause of an accident that occurred on her commute home after she was exposed to pesticide at work which she contended made her impaired].)

Both parties cite and rely on the case *Marsh v. Tilley Steel Co.* (1980) 26 Cal.3d 486, in which the California Supreme Court addressed special employment relationships. The specific circumstances in *Marsh* involved the negligence of an employee of the special employer who injured another of the special employer's workers. The Court held that in that circumstance, the injured special employee "is not barred by workers' compensation law from suing the general employer of the tortfeasor in negligence on respondeat superior principles." (*Id.* at 490.) The Court further held, "The general employer is liable in tort if, at the time of the injury, it retained total or partial concurrent control over the tortfeasor's work." In this case the evidence presented to the trial court permits the inference that the tortfeasor remained wholly or partially under the general employer's control at the time of the accident." (*Id.* [emphasis added].) (*See also Marsh, supra*, 26 Cal.3d at 492 [a special employment relationship arises if a general employer lends an employee to another "and relinquishes to a borrowing employer all right of control over the employee's activities" (emphasis added)].)

The Court also explained that the analysis regarding employer liability where an employee is loaned is not an "either or" analysis. "[W]e stress that that the jury need not find that Wynglarz remained *exclusively* defendant's employee in order to impose liability on defendant. Facts demonstrating the existence of a special employment relationship do not necessarily preclude a finding that a particular employee also remained under the partial control of the original employer. Where general and special employers share control of an employee's work, a 'dual employment' arises, and the general employer remains concurrently and simultaneously, jointly and severally liable for the employee's torts. [Citations omitted.]" (*Id.* at 495-496 [citing, among other decisions, *Strait v. Hale Construction Co.* (1972) 26 Cal.App.3d 941, 950].) (*See also State ex rel. Dept. of California Highway Patrol, supra*, 60 Cal. 4th at 1008 ["Under the common law, a special employment relationship arises when a 'general' employer . . . lends an employee to another employer and relinquishes to [the] borrowing employer all right of control over the employee's activities . . . " [Citation omitted.] 'During this period of transferred control, the special employer becomes solely liable under the doctrine of respondeat superior for the employee's job-related torts. [Citations.]' [Citation omitted.] Nevertheless, not all special employment relationships are exclusive. 'Where general and special employers share control of an employee's work, a "dual employment" arises, and the general employer remains concurrently and simultaneously, jointly and severally liable for the employee's torts. [Citations.]' [Citation omitted.]" (Emphasis added.))

ABM Industries contends that it is not a party to the 2013 Lease Agreement with Flowers pursuant to which ABM General, as successor in interest to ABM Janitorial, leased or loaned employees to

Flowers. ABM Industries contends it has never been Whitehead's employer, such that it cannot be held liable for any negligence of Whitehead under the respondeat superior doctrine.

D. Application to the Facts and Existence of A Triable Issue Precluding Summary Judgment for This Defendant

The Court finds that ABM Industries met its initial burden by presenting evidence that (1) it was not a party to the 2013 Lease Agreement pursuant to which Whitehead was assigned to Flowers' business as a driver such that it is not bound as a contracting party to the terms of that agreement, (2) ABM Industries did not own or control the vehicles involved in the accident, (3) Flowers provided the handheld device and the permitted Whitehead's use of the vehicle for his bread delivery route, and (4) ABM Industries was not Whitehead's employer, based on the DiDomenico Declaration and certain responses to written discovery by defendant Flowers.

1. Plaintiff Has Not Raised A Triable Issue of Fact that ABM Industries Was Whitehead's Employer

The only evidence submitted by Plaintiff which meaningfully attempts to address an "employer" status by ABM Industries with respect Whitehead is (1) the historical payroll records for Whitehead listing ABM Industries in the header and sorting "employees" by name, including Whitehead; however, the deposition testimony of the ABM PMK offered by Plaintiff explains the significance of the historical payroll records' reference to ABM Industries, because DiDomenico testified ABM Industries provided payroll services for ABM General as part of shared services apparently provided by ABM Industries to its related entities; and (2) the WOTC program stated to be "created for ABM Industries" in the job posting for Whitehead's job. (Miller Decl. Exhs. A, B, and D.)

Plaintiff cites 26 U.S.C. section 51 which describes the amount of the tax credit available to an "employer" based on the "wages paid or incurred by the employer." (26 U.S.C. § 51(b)(1).) However, Plaintiff failed to include in the deposition excerpts the ABM PMK's response to the question of whether ABM Industries received WOTC tax credits for individuals placed at client sites like Flowers. (Miller Decl. Exh. I [DiDomenico DT p. 17, ll. 23-25].) That a "WOTC package was created for ABM Industries" does not mean that ABM Industries obtained and used the tax credit for itself; the W-2s for Whitehead showing ABM General as the "employer" for federal tax purposes undermines any inference that ABM Industries utilized any WOTC tax credit associated with Whitehead's employment, rather than ABM General utilizing the credit consistent with 26 U.S.C. section 51. The W-2s as well as the DiDomenico deposition testimony also undermine any implication Plaintiff tries to create from the historical payroll records that ABM Industries that was paying Whitehead's payroll taxes for itself rather than as the administrator of the payroll system by which the ABM General employer taxes may have been sent. Nothing in the historical payroll records identifies the entity that actually paid the payroll taxes (see Miller Decl. Exhs. A, B), but the DiDomenico Declaration, the W-2 offered by Plaintiff, and the Lease Agreement terms support that it was ABM General, as successor in interest in the contract to ABM Janitorial, that paid Whitehead's payroll and payroll taxes.

In its reply, ABM Industries argues that these facts if true show nothing more than the fact that ABM Industries played "an administrative role with respect to Defendant Whitehead's employment with Defendant Flowers at the time of the accident." (Reply p. 5, ll. 24-26.) The Court agrees. None of the facts presented by Plaintiff show that ABM Industries had or exercised any control over Whitehead's

employment in general or in his work for Flowers under the special employment authorities. There is no evidence before the Court that ABM Industries had any relationship or control over Whitehead's work or employment by either ABM General or Flowers. None of the facts support that the policies and purposes underlying the respondeat superior doctrine are implicated based on whatever internal administrative payroll role ABM Industries may have had with ABM General. (*See State ex rel. Dept. of California Highway Patrol, supra*, 60 Cal.4th at 1015; *Bussard, supra*, 105 Cal.App.4th at 803.)

2. Plaintiff Has Not Pleaded A Single Enterprise Theory/Claim, and Plaintiff Has Not Raised A Triable Issue of Fact that ABM Industries Can Be Liable Based on A Single Enterprise Theory Even If He Had

Plaintiff argues that ABM Industries may be liable as Whitehead's employer under a "single integrated enterprise" theory. (Opp. pp. 6-7.) (*See also* Pl. Resp. to UMF 8.) Plaintiff's Complaint, however, does not plead liability by any defendant based on a single enterprise theory. The closest allegations in the Complaint do not allege facts stating that theory. (Compl. ¶¶ 10 ["Plaintiff is informed and believes and thereon alleges that each of the Defendants designated herein by a fictitious name is in some way negligent or responsible for the events and happenings herein referred to which proximately resulted in those injuries and damage to the Plaintiff as herein alleged."] and 11 ["Plaintiff is informed and believes, and upon such information and belief, alleges that at all times herein mentioned, Defendants, and each of them, were acting as the agents, servants, and/or employees of the other named Defendants, and were within the course and scope of their employment and with the full knowledge and consent of each of the other named Defendants. Each Defendant subsequently ratified and condoned the conduct of each remaining Defendant." (Emphasis added.)].) The pleadings define the issues for purposes of summary judgment. (*Doe, supra*, 23 Cal.App.5th at 661; *Teselle, supra*, 173 Cal.App.4th at 161.) Plaintiff does not explain how the fact that ABM Industries may have acted as a payroll processing "agent, servant, or employee" of ABM General would legally make ABM Industries an employer of Whitehead and vicariously liable for his negligence.

Further, even if a single enterprise theory had been pleaded in the Complaint, Plaintiff has not shown that if ABM Industries provided shared administrative services or shared services departments for ABM General, including payroll administration, that fact alone is sufficient legally to demonstrate the existence of a single enterprise for purposes of imposing liability on ABM Industries for acts or omissions arising out of ABM General's Lease Agreement and potential employer liability to third parties. To support his single enterprise theory, Plaintiff cites *Laird v. Capital Cities/ABC* (1998) 68 Cal. App. 4th 727, a decision addressing a single enterprise theory in the context of Title VII of the Federal Civil Rights Act, not vicarious liability for employee negligence under a respondeat superior analysis. The Court relied on federal authorities addressing the standard for a single enterprise theory of liability under Title VII.

In any event, the Court in *Laird* states, "An employee who seeks to hold a parent corporation liable for the acts or omissions of its subsidiary on the theory that the two corporate entities constitute a single employer has a heavy burden to meet under both California and federal law. Corporate entities are presumed to have separate existences, and the corporate form will be disregarded only when the ends of justice require this result. [Citations omitted.] In particular, there is a strong presumption that a parent company is not the employer of its subsidiary's employees. [Citation omitted.]" (*Id.* at 737 [emphasis added, citing among other decisions *Mesler v. Bragg Management Co.* (1985) 39 Cal. 3d

290, 300].) The four factors Plaintiff cites from the *Laird* decision constitute the federal "integrated enterprise" test developed for purposes of Title VII. (*Id.*)

The California Supreme Court in the *Mesler* case cited in *Laird*, however, set forth the two general elements necessary to allege liability based on piercing the corporate veil under an alter ego theory, which is in effect what Plaintiff seeks to do by asserting ABM Industries, a separate corporation, is part of a single enterprise with ABM General, another corporation, such that it is liable for any liability ABM General may have based on ABM General's leasing or loaning Whitehead as an employee under the ABM General Lease Agreement with Flowers. "There is no litmus test to determine when the corporate veil will be pierced; rather the result will depend on the circumstances of each particular case. There are, nevertheless, two general requirements: '(1) that there be such unity of interest and ownership that the separate personalities of the corporation and the individual no longer exist and (2) that, if the acts are treated as those of the corporation alone, an inequitable result will follow.' [Citation omitted.] And 'only a difference in wording is used in stating the same concept where the entity ought to be held liable is another corporation instead of an individual.' [Citation omitted.]" (*Mesler, supra*, 39 Cal.3d at 300 [also stating, "An employee who seeks to hold a parent corporation liable for the acts or omissions of its subsidiary on the theory that the two corporate entities constitute a single employer has a heavy burden to meet under both California and federal law. Corporate entities are presumed to have separate existences, and the corporate form will be disregarded only when the ends of justice require this].) (*See also Tran v. Farmers Group, Inc.* (2002) 104 Cal.App.4th 1202, 1218-1219 ["An interinsurance exchange is not a corporation, but we see no reason why the distinction between the exchange and its attorney-in-fact may not be disregarded in cases meeting the requirements of the 'alter ego' or 'single enterprise' doctrine authorizing disregard of the corporate entity. [Citations omitted.] . . . [¶] Two conditions are generally required for application of the doctrine to two related corporations: (1) such a unity of interest and ownership that the separate corporate personalities are merged, so that one corporation is a mere adjunct of another or the two companies form a single enterprise; and (2) an inequitable result if the acts in question are treated as those of one corporation alone. [Citations omitted.] Whether these conditions have been satisfied is a question of fact. [Citations omitted.]" (Emphasis added.)).

The fact that ABM Industries shares payroll, HR and certain administrative functions with ABM General is the only evidence Plaintiff has presented to support his single enterprise theory between ABM Industries and ABM General. Plaintiff has not cited any authority that this fact alone is enough to deem ABM Industries and ABM General a single enterprise under applicable law.

The ABM PMK specifically testified that he did not know if there were common officers, directors, or managing agents between ABM Industries and ABM General. (Miller Decl. Exh. I [DiDomenico DT 13:25-14:6].) He stated he did not know the corporate structure of ABM, so he did not know if ABM General was a subsidiary of ABM Industries. (Miller Decl. Exh. I [DiDomenico DT 13:20-24].) Plaintiff has not presented any evidence that there has been a commingling of corporate funds or a failure to abide by corporate formalities for maintaining the separateness of the two corporations. Plaintiff has also not presented any evidence that ABM General cannot respond financially and in full for whatever damages Plaintiff might prove ABM General may be liable for, if any, or that there are any other facts that would make it "inequitable" to treat the corporations as separate legal entities.

Defendant's Evidentiary Objections to Miller Declaration

Obj. No. 1 – **Sustained.**

Conclusion and Ruling

ABM Industries met its initial burden on the motion by presenting facts and evidence demonstrating it was not Whitehead's employer and was not a party to the 2013 Lease Agreement with Flowers by which Whitehead was assigned to work for Flowers. For the reasons detailed above, Plaintiff has not raised triable issues of material fact sufficient to show that there are triable issues as to whether ABM Industries was Whitehead's employer under the respondeat superior, dual employment, or special employment doctrines, or as a member of a single enterprise with ABM General, warranting imposition of liability on ABM Industries for any liability of ABM General for Whitehead's negligence.

The motion for summary judgment in favor of ABM Industries is **granted**.

4. 9:00 AM CASE NUMBER: C24-02472
CASE NAME: VERONICA RAMIREZ VS. ARA HOSPITALITY SERVICES, INC.
LEAVE TO FILE FIRST AMENDED COMPLAINT
FILED BY: RAMIREZ, VERONICA

TENTATIVE RULING:

Plaintiff's unopposed motion to file a First Amended Complaint is **granted**.
Plaintiff shall file the proposed First Amended Complaint within 10 days of August 7, 2026.

Parties are reminded the next Case Management Conference (CMC) is set for September 10, 2026 at 8:30 am in D32. Parties must file updated CMC Statements 10 days prior to the CMC.

5. 9:00 AM CASE NUMBER: C25-00031
CASE NAME: THEODORE VIGIL VS. FUTURE FORD OF CONCORD
TO CONSOLIDATE HEARINGS
FILED BY: VIGIL, THEODORE JOSEPH

TENTATIVE RULING:

The Court has no jurisdiction as to this motion because this matter remains stayed in view of the referral to arbitration. See line 7.

6. 9:00 AM CASE NUMBER: C25-00031
CASE NAME: THEODORE VIGIL VS. FUTURE FORD OF CONCORD
VACATE ORDER
FILED BY: VIGIL, THEODORE JOSEPH

TENTATIVE RULING:

The Court has no jurisdiction as to this motion because this matter remains stayed in view of the referral to arbitration. See line 7.